

HOUSE No. 305

The Commonwealth of Massachusetts

PRESENTED BY:

Angelo J. Puppolo, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act improving housing opportunities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/13/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>5/8/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>5/14/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>5/30/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>6/30/2025</i>

HOUSE No. 305

By Representative Puppolo of Springfield, a petition (accompanied by bill, House, No. 305) of Angelo J. Puppolo, Jr., relative to zoning ordinances and by-laws and improving housing opportunities. Community Development and Small Businesses.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act improving housing opportunities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9 of chapter 40A, as so appearing, is hereby amended by inserting
2 after the second paragraph the following paragraph:-

3 Zoning ordinances or by-laws shall permit multifamily development by right in one or
4 more zoning districts that together cover not less than 1.5% of the developable land area in a city
5 or town and which, by virtue of its infrastructure, transportation access, existing underutilized
6 facilities, and/or location, are suitable for multifamily residential development. Zoning
7 ordinances or by-laws shall establish a housing density for by-right multifamily development in
8 such zoning districts of not less than twenty (20) dwelling units per acre. As used herein,
9 “multifamily housing” means apartment or condominium units in buildings which contain or will
10 contain more than three (3) such units.

11 SECTION 2. Section 9 of chapter 40A, as so appearing, is hereby amended by striking
12 out, in the fifth paragraph, the words “open space residential developments or”.

SECTION 3. Section 9 of chapter 40A, as so appearing, is hereby amended by striking out the sixth paragraph and inserting in place thereof the following paragraph:-

Notwithstanding any provision of this section to the contrary, zoning ordinances or by-laws shall provide that open space residential development shall be permitted by right in residential zoning districts at the density permitted in the zoning district in which the property is located upon review and approval by a planning board pursuant to the applicable provisions of sections 81K to 81GG, inclusive, of chapter 41 and in accordance with its rules and regulations governing subdivision control. Zoning ordinances and by-laws shall not require the submission of a plan showing a standard subdivision complying with the otherwise applicable requirements of the ordinance or by-laws as a condition precedent to the approval of an open space residential development plan.

SECTION 4. Section 81Q of chapter 41, as so appearing, is hereby amended by inserting after the second sentence the following sentence:-

Such rules shall not require the submission of a plan showing a standard subdivision complying with the requirements of the local zoning ordinance or by-laws as a condition precedent to the approval of a plan depicting an open space residential development pursuant to section 9 of chapter 40A.

SECTION 5. Chapter 40A is hereby amended by inserting after the Section 7 the following section:-

Section 7A. Site Plan Review

(a) As used in this section, “site plan review” shall mean a separate review under a municipality’s zoning ordinance or by-law, by the planning board, of a plan showing the proposed on-site arrangement of, parking, pedestrian and vehicle circulation, utilities, grading and other site features and improvements existing or to be placed on a parcel of land, in connection with the proposed use of land or structures. Under site plan review, an applicant proposing the development or redevelopment of land for a use that is authorized by right under the local zoning ordinance or by-law presents a plan and other information relevant to the site design of the proposed development to the planning board, which may take input from municipal departments and parties in interest. Such review shall take place under this section only where the proposed use does not require a special permit or variance under the local by-law or ordinance.

(b) Cities and towns may require such site plan review under a local ordinance or by-law adopted prior to the effective date of this section, or thereafter under this section. Site plan review may be required before a building permit is granted for the construction, reconstruction, or expansion of structures for a use not requiring a special permit or variance, as well as before the commencement of site development not requiring a building or special permit. The planning board may adopt, and from time to time amend, rules and regulations to implement the local site plan review ordinance or by-law, including provisions for the imposition of reasonable fees for the employment of outside consultants in the same manner as set forth in section 53G of chapter 44.

(c) An ordinance or by-law requiring site plan review, whether adopted under this section or previously adopted under the municipality’s home rule authority, shall comply with the provisions of this and all following subsections of Section 7A. The ordinance or by-law shall

establish the submission, review, and approval process for applications, which may include the requirement of a public hearing held pursuant to the provisions of section eleven of this chapter. Approval of a site plan shall require a simple majority vote of the planning board and the planning board's written decision shall be filed with the city or town clerk within the time limits prescribed by the ordinance or by-law, not to exceed 90 days from the date of filing of the application. If no decision is filed within the time limit prescribed, the site plan shall be deemed constructively approved as provided in section 9, paragraph 11 of this chapter.

(d) The decision of the planning board may require only those conditions that the applicant has agreed to make or that otherwise are within the planning board's power under the applicable ordinance or by-law and is determined by the planning board to be necessary to ensure substantial compliance of the proposed improvements with the requirements of the zoning ordinance or by-law or to reasonably mitigate any extraordinary direct adverse impacts of the proposed improvements on adjacent properties. A site plan application may be denied only on the grounds that: (i) the proposed site plan cannot be conditioned to meet the requirements set forth in the zoning ordinance or by-law; (ii) the applicant failed to submit the information and fees required by the zoning ordinance or by-law necessary for an adequate and timely review of the design of the proposed land or structures; or (iii) there is no feasible site design change or condition that would adequately mitigate any extraordinary direct adverse impacts of the proposed improvements on adjacent properties.

(e) Zoning ordinances or by-laws shall provide that a site plan approval granted under this section shall lapse within a specified period of time, not less than two years from the date the planning board files its decision with the city or town clerk, if substantial use or construction, including substantial investment in site preparation or infrastructure construction, has not yet

79 begun. The aforesaid minimum period of two years may, by ordinance or by-law, be increased to
80 a longer period. If an appeal is filed, the commencement of the lapse period shall be measured
81 from the date of the dismissal of the appeal or entry of final judgment in favor of the applicant.
82 The period for lapse may be extended for good cause by a majority vote of the planning board.

83 (f) Site plan review decisions may be appealed under Section 17 in the same manner as a
84 special permit. A complaint by a plaintiff challenging a site plan approval under this section shall
85 allege the specific reasons why the planning board exceeded its authority in approving the site
86 plan and shall allege specific facts establishing how the plaintiff is aggrieved by such decision.
87 The planning board's decision in such a case shall be affirmed unless the court concludes that the
88 decision exceeded the planning board's authority under subsection (d).

89 (g) The submission and review process for a site plan submitted in connection with an
90 application for a use that requires a special permit or use variance shall be in conjunction with
91 the submission and review of such special permit or variance application in a coordinated
92 process and shall not be subject to a separate site plan review hearing or process under this
93 section or any local ordinance or by-law.

94 (h) In municipalities that adopted a zoning ordinance or by-law requiring some form of
95 site plan review prior to the effective date of this act, the provisions of this Section 7A shall not
96 be effective with respect to such zoning ordinance or by-law until one year after the effective
97 date of this act.

98 SECTION 6. The twelfth paragraph of Section 9 of chapter 40A, as so appearing, is
99 hereby amended by deleting the words "a two-thirds vote of boards with more than five
100 members, a vote of at least four members of a five member board, and a unanimous vote of a

101 three member board” and inserting in place thereof the following words:- the concurring vote of
102 a majority of the members then in office.

103 SECTION 7. The fourth paragraph of Section 15 of chapter 40A, as so appearing, is
104 hereby amended by deleting the words “all members of the board of appeals consisting of three
105 members, and a concurring vote of four members of a board consisting of five members” and
106 inserting in place thereof the following words:- the concurring vote of a majority of the members
107 of the board of appeals then in office.